

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 16-16

MAVL CAPITAL, INC., IAM & AL GROUP INC. and MAXIM OSTROVSKIY,
(Complainants)

v.

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,
(Respondents)

**MOTION TO BE RELIEVED AS COUNSEL FOR RESPONDENT MARINE
TRANSPORT LOGISTICS, INC.**

The undersigned attorney, Stephen H. Vengrow, hereby respectfully moves pursuant to Federal Maritime Commission Rule 23, that Stephen H. Vengrow, Eric Chang, and the law firm of Montgomery McCracken Walker & Rhoads LLP, be relieved as counsel for Respondent Marine Transport Logistics, Inc. Respondent Dimitry Alper is represented by separate counsel.

The reasons for this motion are as follow:

1. Respondent are currently indebted to my firm in a substantial amount, with multiple outstanding invoices in this proceeding and in matters. In this regard, we also represent Respondent Marine Transport Logistics, Inc. ("MTL") in other matters, including in cases currently pending in the U.S. District Court for the District of New Jersey; U.S. District Court for the Eastern District of New York; and before the

Commission (*Crocus FZE and Crocus Investments LLC. v. Marine Transport Logistics, Inc.* , Docket No. 15-04).¹

2. No payments have been received from Respondent in this or any other matter for over four months, despite repeated warnings that the undersigned would seek leave to withdraw as counsel unless such payment obligations are fulfilled.

3. The amount outstanding is substantial and the continued representation of Respondent would, thus, impose an unreasonable financial burden upon Montgomery McCracken Walker & Rhoads, LLP. *See*, Rule 1.16(b)(5), (b)(6), of the American Bar Association's Model Rules of Professional Conduct ("ABA Model Rules").

4. Additionally, in the recent months, I have reached a fundamental disagreement with Respondent on how to proceed in this matter and other matters involving the representation of Respondent. Respondent has expressed their dissatisfaction with the litigation strategy taken and have been unwilling to cooperate or consider our legal advices and recommendations. Consequently, the clear communication and litigation issues that have arisen have rendered this representation to be unreasonably difficult. *See*, ABA Model Rule 1.16(b)(6).

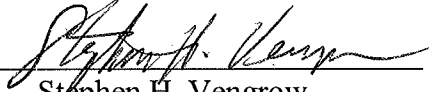
5. Respondent will not suffer material adverse effect as a result of the withdrawal. At this point, the proceeding has been stayed pending a Commission decision on Exceptions. *See*, 16-16, Doc. No. 19.

6. In view of the foregoing, I therefore respectfully request for myself, Eric Chang, and Montgomery McCracken Walker & Rhoads, LLP to withdraw and be relieved as attorneys in this matter.

¹ The undersigned is filing a concurrent Motion to be Relieved as Counsel, before the Commission, in *Crocus FZE and Crocus Investments LLC. v. Marine Transport Logistics, Inc.* , Docket No. 15-04.

Dated: February 22, 2018
New York, NY

Respectfully submitted,
MONTGOMERY McCracken
WALKER & RHOADS, LLP

By: 
Stephen H. Vengrow

437 Madison Ave,
New York, NY 10022
212-551-9500

CERTIFICATE OF SERVICE

The undersigned declares under penalty of perjury that the following is true and correct:

1. I am over the age of eighteen years and I am not a party to this action.
2. On February 22, 2018, I served a complete copy of Respondent's MOTION TO BE RELIEVED AS COUNSEL FOR RESPONDENT MARINE TRANSPORT LOGISTIC, INC., in Docket No. 16-16 by E-mail and U.S. Mail to:

Original and 5 Copies to:

Secretary, Federal Maritime Commission
800 N. Capital St., NW.
Washington DC 20573-0001
secretary@fmc.gov

Copy to:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
marcus.nussbaum@gmail.com

Marine Transport Logistic, Inc.
c/o Alla Solovyeva
63 New Hook Road
Bayonne, New Jersey 07002



Eric Chang

Dated: February 22, 2018
New York, New York